

26SMCV03858 26SMCV03858

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Case Number: 26SMCV03858 Hearing Date: September 17, 2026 Dept: P

Tentative

Ruling

Topanga

Partners, LLC v. Roberta Koehl, Case No. 26SMCV03858

Defendant's

Motion to Quash Service of Summons

Hearing

Date: September 17, 2026

Background

This is an

unlawful detainer case. Plaintiff Topanga Partners, LLC seeks possession of property located at 23732 Zuniga Road, Topanga, California 90290. Plaintiff alleges that it purchased the subject property in Bankruptcy Case No. 1:24-bk MB, In re: Zuniga 23732, LLC, on April 21, 2026. (Complaint, ¶ 6.) Plaintiff alleges that Koehl was a tenant or subtenant of the prior owner. (Id. at ¶ 11.)

On July

17, 2026, Plaintiff filed the complaint.

On August

10, 2026, the Court granted an application and order to serve summons by posting for unlawful detainer.

On

September 3, 2026, Defendant filed this Motion to Quash Service of Summons. On September 11, 2026, the Court granted Plaintiff's ex parte motion to advance the hearing. As of September 14, 2026, the Court has not received Plaintiff's opposition to Defendants' motion.

Defendant

argues that the order authorizing service by positing was improperly obtained on an affidavit that did not establish that Defendant could not be served in any other manner specified in Article 3 and because Plaintiff only made three attempts at service, all at the same address. Next, Defendant argues that service was not complete until August 23, 2026. Next, Plaintiff argues that the complaint does not state a claim in unlawful detainer because the property was not sold by Defendant or by a debtor entity, but by a Chapter 7 trustee under bankruptcy law.

In

opposition, Topanga argues that service was proper and it attempted personal service with sufficient diligence before obtaining an order authorizing service by posting. Topanga argues that Koehl's challenge to Plaintiff's title from the bankruptcy sale and her challenge to the three-day notice are improper for purposes of this motion.

Motion

to Quash Service of Summons for Lack of Jurisdiction

Code of

Civil Procedure, section 418.10 states the following: "(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).)¿

"[C]ompliance¿with

the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v.

Berquist Construction Co.¿(1994) 24 Cal.App.4th 1426, 1444.) "[T]he filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such

proofs.” (Id. at pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper, (1966) 245 Cal.App.2d 866, 868.)

Discussion

Service

C.C.P.

§418.10(a)(1) provides that “A defendant... may serve and file a notice of motion... [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her...” (CCP § 418.10(a).)

When a

defendant moves to quash service of the summons and complaint, the plaintiff has, “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

C.C.P.

§415.20(a) provides that, “In lieu of personal delivery of a copy of the summons and complaint to the person to be served..., a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office..., with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left... Service of a summons in this manner is deemed complete on the 10th day after the mailing.”

C.C.P.

§415.20(b) provides that, “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served..., a summons may be served by leaving a copy of the summons and complaint at the person’s... usual place of business... in the presence of a competent member of the household or a person apparently in charge of his or her office [or] place of business..., at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place

where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.”

Plaintiff's

showing of diligence on its proof of attempted service was sufficient for the Court to authorize service by posting. Three attempts at personal service at Koehl's residence on three different days is generally sufficient to authorize service by alternate method, including posting. (*Espinolda v. Nunez* (1988) 199 Cal.App.3d 1389, 1392.)

Plaintiff

is also correct that service by posting does not extend the notice period in unlawful detainer actions and that their typo in the proof of service—stating Robert Koehl instead of Roberta Koehl—is of no consequence because the notice itself is directed to Roberta Koehl.

Demurrer to Plaintiff's Unlawful Detainer Claim

Koehl argues that in an unlawful detainer action, a Motion to Quash Service of Summons is a vehicle for challenging whether the complaint states a claim for unlawful detainer, citing *Delta Imports, Inc. v. Municipal Court* (1983) 146 Cal.App.3d 1033, 1035. Plaintiff contends that raising demurrer issues on a motion to quash is improper, citing *Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607. In *Borsuk*, the court found that Delta was misleading and held that:

Thus, the holding of Delta (despite the decision's all-encompassing language) is limited to the circumstances in Delta. Those circumstances were that the complaint failed to allege proper service of a notice to pay or quit. (*Delta*, *supra*, 146 Cal.App.3d at p. 1036, 194 Cal.Rptr. 685.) It was thus defective on its face because it contained “none of the required allegations regarding notice. It merely allege[d] that, ‘More than 3 days and more than 30 days have lapsed since the Defendants were given notice....’ There [was] no allegation that the notice was in writing, that it specified the alleged breaches of the lease or that it unequivocally demanded possession.” (*Ibid.*)

(*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 616.)

Pursuant

to the Court of Appeal's reasoning in Borsuk, this Court will not consider Koehl's challenge to the pleading on issues apart from any arguments Koehl raises regarding the complaint's allegations of proper service of the three-day notice. Koehl contends that the proof of service, not the notice itself, improperly identifies her as "Robert Koehl," that posting is only available where the tenant's place of residence cannot be ascertained, and where the complaint was filed before the notice period.

First,

the notice itself names Koehl correctly. On the proof of service filed with the Court contains the mis-spelling of the name. Koehl does not cite authority finding that this defect is sufficient to invalidate the three-day notice. Second, service by posting is an alternate method of service that does not require a showing that a tenant's place of residence cannot be ascertained. (Code Civ. Proc., §415.45 (b).) Third, the notice period is not extended for service by posting in unlawful detainer actions. (See *Losornio v. Motta* (1998) 67 Cal.App.4th 110, 115.)

Conclusion

Defendant's

Motion to Quash Service of Summons is DENIED.